

Working Journalists Act, 1993

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Amending Acts

1. Act to Amend Some Nepal Acts for Maintaining Gender Equality, 2063 2063.7.17
2. Working Journalist (First Amendment) Act, 2064 2064.4.27
3. Act to Consolidate the Republic and Amend Some Nepal Laws, 2066 2066.1.07
4. Act to Amend Some Nepal Acts for Maintaining Gender Equality and Ending Gender-Based Violence, 2072 2072.6.14
5. Act to Amend Some Nepal Acts to Make Compatible with the Constitution of Nepal, 2075 2075.11.19

Act No. 7 of the year 2051

An Act Made to Make Provision Relating to Working Journalists

Preamble: Whereas it is desirable to make timely provisions for the rights, interests, facilities and security of working journalists and to encourage the promotion of their professional competence for the development of clean journalism,

Be it enacted by the Parliament in the twenty-third year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter - 1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Working Journalist Act, 2051".
(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires,-

Removed by the First Amendment.(a)

Amended by the First Amendment.(b) "Communication Establishment" means a public or private communication medium or organized institution established or registered pursuant to the prevailing law in which three or more working journalists, employees or workers are employed for the purpose of operating any communication related business or service.

(c) "Manager" means a person authorized to make the final decision in the operation of the work of any communication establishment. Amended by the First Amendment.(d) "Working Journalist" means a person, other than a person vested with managerial and administrative authority in a communication establishment, who adopts communication related business or service as a principal occupation and works full-time or

part-time in the communication establishment for remuneration, and said term also denotes a person related to the journalism profession such as chief editor, editor, correspondent, stringer, newsreader, program director, translator, web designer, columnist, photo journalist, press cameraman, cartoonist, program producer or presenter, visual or language editor engaged in collecting, producing, editing or transmitting news materials in the communication establishment. Amended by the First Amendment.(e) "Employee" means a person, other than a person authorized to make final decisions on managerial and administrative work in a communication establishment, engaged in the administrative, managerial, technical or other work of such establishment.

Added by the First Amendment.(e1) "Worker" means a person, other than a working journalist or employee, engaged in selling, distributing or producing communication materials or in other labor-based work in a communication establishment. (f) "Remuneration" means the salary received by a working journalist from the communication establishment in return for work done in the communication establishment. Amended by the First Amendment.(g) "Committee" means the Minimum Remuneration Determination Committee constituted pursuant to section 11. (h) "Family" means husband, wife, son, Removed by the Act to Amend Some Nepal Acts for Maintaining Gender Equality, 2063. daughter, adopted son, Removed by the Act to Amend Some Nepal Acts for Maintaining Gender Equality, 2063. adopted daughter, father, mother or step-mother living with and to be maintained by the working journalist himself/herself, and said term also denotes, in the case of a male working journalist, his grandfather and grandmother, and in the case of a female working journalist, her mother-in-law and father-in-law. (i) "Press Registrar" means the Press Registrar appointed pursuant to section 19 of the Print and Publication Act, 2048. (j) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. Chapter - 2 Appointment, Security of Service and Working Hours Amended by the First Amendment.3. Classification of Posts: (1) The Manager shall classify the posts of working journalists and the hierarchical levels of such posts according to the nature of the work of the communication establishment. (2) While making the hierarchical classification of posts pursuant to sub-section (1), the Manager shall do so as determined by the Committee. (3) After classifying the posts and the hierarchical levels of such posts pursuant to sub-section (1), the Manager shall provide to the Press Registrar a description specifying the qualifications, experience, work, duties, rights and responsibilities required for such post. Added by the First Amendment.3a. Not to Engage in Work Without Appointment: The Manager shall not engage any person to work in the post of a working journalist without appointing him/her pursuant to this Act. Amended by the First Amendment.4. Filling of Posts by Open Competition: (1) After providing the description as per sub-section (3) of section 3 to the Press Registrar, the Manager shall fill the posts of working journalist required for the communication establishment by selection through open competition adopting the prescribed procedure. (2) The Manager shall give an appointment letter to the person selected through open competition pursuant to sub-section (1) within the prescribed period.

Amended by the First Amendment.5. Appointment on Contract Basis: (1) Notwithstanding anything contained in section 4, if the expert service of any person is required for the work of the communication establishment, the Manager may, with the approval of the Press Registrar, appoint such person to the post of a working journalist on a contract basis for a fixed period.

(2) While making an appointment on a contract basis pursuant to sub-section (1), appointments shall be made only up to a number not exceeding fifteen percent of the total number of working journalists working in the concerned communication establishment.

(3) The work to be done, remuneration to be received, period of service and other terms and conditions and facilities of a person appointed on a contract basis pursuant to sub-section (1) shall be as mentioned in the

contract.

(4) Notwithstanding anything contained in sub-section (3), the remuneration, provident fund and other facilities of a working journalist appointed on a contract basis shall not be less than the remuneration, provident fund and other facilities received by a working journalist working in the same post or level of the communication establishment. Amended by the First Amendment.5a. To Give Information of Appointment: (1) After appointing any person to the post of a working journalist pursuant to section 4 or 5, the Manager shall give information thereof to the Press Registrar.

(2) The Press Registrar shall keep the information received pursuant to sub-section (1) updated. 6. Probation Period: While making a permanent appointment for the first time as a working journalist, the appointment shall be made on a probation period of six months. If his/her work is not satisfactory during that period, his/her appointment may be cancelled. 7. Incumbent to Remain in Position: The working journalist shall remain the incumbent of his/her post in the following circumstances:-

(a) As long as he/she continues to work in that post,

(b) While on leave,

(c) While deputed elsewhere by the Manager, or

(d) While under suspension. 8. Security of Service: The service of any working journalist shall not be terminated without following the procedure under this Act or the rules made under this Act. 9. Working Hours:

(1) The time during which a working journalist has to work shall, subject to sub-section (2), be as prescribed by the Manager.

(2) The time a working journalist has to work in each week shall not exceed forty-eight hours, and he/she shall get one day of weekly holiday by rotation.

(3) If any working journalist is made to work more than the time prescribed pursuant to sub-section (2), additional facilities shall be given as prescribed. 10.

Provision Relating to Attendance and Leave: (1) Every Manager shall maintain an attendance register of working journalists working in the communication establishment. (2) Every working journalist shall regularly attend his/her office or work area at the time fixed by the Manager and work. Generally, he/she shall not be absent from the office or work area without approved leave. (3) Public holidays, casual and festival holidays, sick leave, home leave, maternity leave, Added by the Act to Amend Some Nepal Acts for Maintaining Gender Equality and Ending Gender-Based Violence, 2072. paternity leave, bereavement leave and leave without pay that working journalists are entitled to shall be as prescribed. Chapter - 3 Remuneration and Compensation Amended by the First Amendment.11. Minimum Remuneration Determination Committee: (1) For the purpose of determining the minimum remuneration amount payable to a working journalist and recommending to the Government of Nepal for the revision of such remuneration amount as needed, a Minimum Remuneration Determination Committee consisting of the following members shall be constituted:- (a) Person appointed by the Government of Nepal from among persons who have made distinguished contribution in the field of communication - Chairperson Amended by the Act to Amend Some Nepal Acts to Make Compatible with the Constitution of Nepal, 2075.(b) Representative (Gazetted First Class), Ministry of Communication and Information Technology - Member Amended by the Act to Amend Some Nepal Acts to Make Compatible with the Constitution of Nepal, 2075.(c) Representative (Gazetted First Class), Ministry of Labour, Employment and Social Security - Member (d) President of the Nepal Journalists Association - Member (e) Three persons, including at least one woman, designated by the Nepal Journalists Association from among working journalists - Member (f) Three persons nominated by the Government of Nepal from

among Managers - Member (g) One person nominated by the Government of Nepal from among employees or workers - Member (h) One person nominated by the Government of Nepal from among experts on labour and economics - Member (i) Press Registrar - Member-Secretary (2) The term of office of the Chairperson and nominated members of the Committee shall be two years. (3) Except as provided in this Act, other functions, duties and powers of the Committee shall be as prescribed. (4) The procedure relating to meetings of the Committee shall be as determined by the Committee itself. Added by the First Amendment.11a. Government of Nepal may determine Minimum Remuneration: Notwithstanding anything contained in section 11, if the Committee for any reason fails to determine the minimum remuneration of working journalists and recommend to the Government of Nepal, the Government of Nepal itself may determine the minimum remuneration of working journalists. 12.

Right to Receive Remuneration and Allowances: (1) A working journalist shall receive monthly remuneration in return for working in the communication establishment. (2) Any working journalist shall be entitled to the remuneration and allowances fixed for him/her even if he/she is not in the service of the communication establishment for any reason. (3) The monthly remuneration of any working journalist shall not be deducted except as provided in this Act or the rules made under this Act. (4) The remuneration payable to any working journalist shall not be stopped during his/her leave. 13. Annual Salary Increment: Every working journalist shall receive one salary increment as prescribed after completing one year of service. Amended by the First Amendment.14. Provision Relating to Treatment and Compensation: If any working journalist sustains injury, loses a limb, dies, or his/her personal property is destroyed in the course of work in the communication establishment, he/she or the person as mentioned in section 16 shall receive from the concerned communication establishment the medical expenses or compensation amount as prescribed. 15. Prohibition on Deduction of Remuneration: (1) The remuneration of a working journalist shall not be deducted in any circumstance except in the following circumstances:- (a) If a fine imposed has to be deducted, (b) If deduction has to be made for absence, (c) If deduction has to be made for loss caused to the communication establishment due to work done knowingly or negligently, (d) If deduction has to be made of the advance amount given earlier subject to deduction from remuneration, (e) If deduction has to be made of any amount payable as per the order of a government office or court, (f) If income tax or any other tax leviable under the prevailing law has to be deducted, or (g) If any amount has to be deducted as prescribed. (2) The limit of the amount to be deducted pursuant to sub-section (1), the manner and period of deduction and other matters relating thereto shall be as prescribed. 16.

Right to Receive Balance Amount: (1) If, after a working journalist retires from the service of the communication establishment or dies while in such service, any amount receivable pursuant to this Act or the rules made under this Act remains to be collected from the communication establishment, such amount shall be received by the working journalist himself/herself or the person desired by him/her. (2) If the working journalist does not desire any person to receive the amount pursuant to sub-section (1), such amount shall be received by the closest claimant of his/her family. Chapter - 4 Welfare Provisions 17. Welfare Fund: The Manager shall establish a welfare fund as prescribed for the rights, interests and security of working journalists. 18. Gratuity, Provident Fund and Medical Treatment and Other Facilities: The gratuity, provident fund, medical treatment and other facilities received by working journalists shall be as prescribed. 19. Change of Ownership Not to Have Adverse Effect: A change in the ownership of a communication establishment shall not have any adverse effect on the service, terms and conditions and facilities of the working journalists working in such a communication establishment. 20. Service Terms and Facilities Not to be Changed to Cause Prejudice: The service terms and facilities of working journalists shall not be changed so as to cause prejudice to them. Chapter - 5 Retirement and Reduction of Posts 21. Retirement: (1) The Manager may

retire from service a working journalist who has completed a continuous service period of 25 years as a working journalist either before or after the commencement of this Act. (2) Any working journalist may take voluntary retirement from the service of the communication establishment by giving three months' advance notice to the Manager. 22. Reduction of Posts: (1) If the income of the communication establishment decreases or if the Manager wishes to operate the communication establishment by reducing investment, posts may be reduced proportionately and working journalists may be retired from service.

Provided that, while retiring working journalists from the service of the communication establishment by reducing posts in this manner, out of the working journalists engaged in the same kind of work who have completed a continuous service period of one year, reduction shall be made in order starting with those appointed last to such work and they shall be retired from service. (2) If posts have to be reduced pursuant to sub-section (1), the Manager shall give notice specifying the reason for such reduction to the Press Registrar and the concerned working journalist three months in advance. (3) After reducing posts once pursuant to sub-section (1), no posts shall be created again or any working journalist appointed on a contract basis within one year. (4) If any Manager, contrary to sub-section (3), appoints any person as a working journalist within that period, the working journalist who was previously reduced in post may apply to the concerned Manager to be appointed in that communication establishment. Upon such application, the concerned Manager shall appoint such working journalist. (5) If the Manager does not appoint pursuant to sub-section (4), such person may lodge a complaint with the Press Registrar. (6) If the complaint lodged pursuant to sub-section (5) appears reasonable, the Press Registrar may order the concerned Manager to appoint the applicant. If an order is given by the Press Registrar in this manner, the concerned Manager shall re-appoint such person as a working journalist. (7) A party dissatisfied with the order given by the Press Registrar pursuant to sub-section (6) may appeal to the concerned High Court within thirty-five days. 23. Closure of Communication Establishment: (1) If the Manager wishes to close the communication establishment operated by him/her for any reason, he/she shall give notice thereof to the Press Registrar and the concerned working journalists three months in advance. (2) If the communication establishment is to be closed pursuant to sub-section (1) and working journalists obtain automatic retirement, or if posts are reduced and working journalists obtain retirement pursuant to section 22, the Manager shall provide the concerned working journalists with facilities as prescribed. 24.

Right to Lodge Complaint: (1) If any facility or amount that a working journalist is entitled to receive from the communication establishment pursuant to this Act is not received, or if any working journalist suffers prejudice due to the Manager not performing any work as required by this Act or the rules made under this Act, such working journalist may lodge a complaint with Amended by the First Amendment. the Press Registrar within thirty-five days. (2) If the complaint lodged pursuant to sub-section (1) is found reasonable, the prescribed committee may cause the concerned communication establishment to provide or perform any facility, amount or other work as demanded by the complainant, and if it appears that the Manager knowingly did not provide the facility or amount or did not perform the work that ought to be provided or performed, may impose a fine of one thousand to two thousand rupees on such Manager. (3) A person prejudiced by a decision made by the prescribed committee pursuant to sub-section (2) may appeal to the concerned Appellate Court within thirty-five days. Chapter - 6 Conduct, Punishment and Appeal 25. Conduct: Working journalists shall observe conduct as prescribed. 26. Punishment: (1) The Manager may impose any of the following punishments on a working journalist who does not conduct himself/herself according to the post:- (a) Minor Punishment: (1) Warning, (2) Withholding up to two annual increments, or (b) Major Punishment: Dismissal from service. (2) The Manager may impose a minor punishment if the work of any working journalist is unsatisfactory or if he/she acts indisciplinarily. (3) The Manager may impose a major punishment

on a working journalist in any of the following circumstances:- (a) On repeated violation of conduct related matters, (b) On repeated indisciplinary acts, (c) On repeated failure to fulfill the responsibilities of his/her post, (d) If he/she is absent from his/her work for more than 60 days without approved leave or without informing the Manager. 27. Power to Suspend: (1) If any charge mentioned in section 26 has to be inquired into in relation to any working journalist, the Manager may suspend such working journalist until the inquiry is completed.

Provided that, normally suspension shall not be made unless the following circumstances exist:- (a) If, without suspension, there is a possibility of the working journalist being able to collect false evidence or destroy evidence against him/her, or (b) If, without suspension, allowing the working journalist to work would cause loss or damage to the communication establishment. (2) No working journalist shall be suspended for a period exceeding three months pursuant to sub-section (1). (3) The suspension of a working journalist suspended pursuant to sub-section (1) shall end if he/she is reinstated in service or dismissed from service. (4) A working journalist suspended pursuant to sub-section (1) shall receive half remuneration during the period of such suspension, and if he/she is acquitted of the charge, shall receive full remuneration for the entire period of such suspension. 28. Opportunity to Submit Defence: Before ordering punishment to any working journalist, the Manager shall give such working journalist an opportunity to submit his/her defence by specifying the reason for the proposed action and giving a reasonable deadline. While giving such opportunity, the charges levelled against him/her shall be clearly specified and it shall also be disclosed on what basis each charge is founded. 29. Proposed Punishment to be Notified Before Ordering Major Punishment: Before ordering a major punishment, if the working journalist fails to submit a defence within the deadline given for submitting a defence pursuant to section 28, or if the defence submitted is not satisfactory, the Manager shall ask for an explanation by giving a reasonable deadline in this regard as to why the proposed punishment should not be given to such working journalist. 30. Power to Impose Punishment: If no defence or explanation is given pursuant to section 28 or section 29, or if the defence or explanation given is not satisfactory and such working journalist has to be punished, the Manager may impose any punishment pursuant to section 26. Amended by the First Amendment. 31. Appeal: A person dissatisfied with the punishment imposed by the Manager pursuant to section 30 may appeal to the Labour Court established pursuant to the prevailing law within thirty-five days. Chapter - 7 Miscellaneous 32. Delegation of Powers: The Government of Nepal may, by publishing a notice in the Nepal Gazette, delegate the powers conferred upon it pursuant to this Act to any body or any officer employee of the Government of Nepal. 33.

Penalty: (1) If loss or damage is caused to the communication establishment by any act or action of a working journalist, the Manager may lodge a case within three months from the date of such occurrence. (2) If it is found that any loss or damage has been caused to the communication establishment due to any act done by a working journalist knowingly or negligently, such working journalist may be made to pay compensation for the loss or damage caused and may also be fined one thousand to two thousand rupees. Added by the First Amendment. (3) If any Manager repeatedly does any act contrary to this Act or the rules made under this Act, the Press Registrar may impose a fine of up to twenty-five thousand rupees on such Manager. Added by the First Amendment. (4) A Manager dissatisfied with the punishment imposed pursuant to sub-section (3) may appeal to the concerned High Court within thirty-five days from the date of such punishment. Added by the First Amendment. 33a. Recommendation to Prohibit Facilities: If any communication establishment does any act contrary to this Act or the rules made under this Act, the Press Registrar may recommend to the concerned body to prohibit the provision of the following facilities to such communication establishment:- (a) If the communication establishment publishes newspapers, not to include such newspapers in the newspaper classification pursuant to the prevailing law, (b) To prohibit or reduce grants or advertisements given by the

Government of Nepal, (c) To prohibit the import of communication materials and related raw materials, (d) Not to allow participation in government visit delegations. Amended by the First Amendment.34. Provisions Relating to Appointment, Service Terms and Facilities of Employees and Workers: (1) The provisions made in this Act regarding the appointment, service terms and facilities of working journalists shall apply equally to employees and workers. (2) Notwithstanding anything contained in sub-section (1), provisions other than remuneration and facilities of working journalists, employees or workers working in public communication establishments shall be according to the law relating to the service, terms and conditions and facilities of the concerned communication establishment. (3) Notwithstanding anything contained in sub-section (2), if working journalists, employees or workers working in a public communication establishment are entitled to higher remuneration and facilities than those provided in this Act, this Act shall not be deemed to have created any obstacle to receiving such higher remuneration and facilities. Added by the First Amendment.34a.

Right to Form Trade Union: Working journalists may form a trade union in the communication establishment where they are employed, subject to the prevailing law on trade unions, regarding the protection and promotion of their professional and occupational rights and interests. Added by the First Amendment.34b.

Provision Relating to Dispute Resolution: (1) If any dispute arises between working journalists, employees or workers and the management of the communication establishment on any matter relating to service terms and facilities, the Press Registrar may resolve or cause to resolve such dispute through various means such as negotiation, conciliation or mediation. (2) If any dispute cannot be resolved through the means pursuant to sub-section (1), the resolution of such dispute shall be according to the prevailing labour law. Added by the First Amendment.34c.

Provision Relating to Capacity Development: (1) The Government of Nepal and the communication establishment shall make arrangements for study and training for the development of professional competency, capacity and skills of working journalists. (2) For the purpose pursuant to sub-section (1), the Government of Nepal may provide financial and technical assistance to the communication establishment, and the communication establishment shall set aside an amount of one percent of its total annual income. Added by the First Amendment.34d.

Power to Inspect and Monitor: (1) The Press Registrar may inspect and monitor any communication establishment regarding whether it has done any act contrary to this Act or the rules made under this Act. (2) While inspecting and monitoring pursuant to sub-section (1), if any communication establishment is found to have done any act contrary to this Act or the rules made under this Act, the Press Registrar may issue necessary directives to such communication establishment. (3) It shall be the duty of the concerned communication establishment to comply with the directives given by the Press Registrar pursuant to sub-section (2). Added by the First Amendment.34e.

Provisions of this Act Not to Apply: (1) Notwithstanding anything contained elsewhere in this Act, any provision of this Act shall not apply to any communication establishment prescribed by the Government of Nepal, in consultation with the Committee, by publishing a notice in the Nepal Gazette. (2) While prescribing that any provision of this Act shall not apply to any communication establishment pursuant to sub-section (1), the Government of Nepal may take into account the following bases:- (a) Sales volume of the newspaper, (b) Capacity of the radio equipment, (c) Number of cable television subscribers, (d) Number of hits of the online newspaper, (e) Number of program productions, (f) Number of news distributions. 35.